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Case Number: 25CHCV00693 Hearing Date: July 9, 2026 Dept: F49

Dept. F49

Date: 7/9/26

Case Name: Claudia Portocarrero v. GEICO General
Insurance Company, and Does 1 to 25

Case No. 25CHCV00693

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 9, 2026

DEMURRER; MOTION
TO STRIKE

Los Angeles Superior
Court Case No. 25CHCV00693

Motion filed: 3/30/26

MOVING PARTY: Defendant GEICO General Insurance
Company

RESPONDING PARTY: None

NOTICE: Proper

RELIEF REQUESTED: An order from this Court sustaining Defendant's Demurrer to all causes of action of Plaintiff's Second Amended Complaint; and striking portions of the Second Amended Complaint.

TENTATIVE RULING: The Demurrer is SUSTAINED without leave to amend. The Motion to Strike is DENIED AS MOOT.

BACKGROUND

This action arises from a dispute concerning an insurance agreement. On February 26, 2025, Plaintiff Claudia Portocarrero ("Plaintiff") initiated this action against Defendants GEICO General Insurance Company ("GEICO"), Harris Guiao ("Guiao") (collectively "Defendants"), and Does 1 through 25.

On August 24, 2025, the Court sustained Defendants' demurrer to all causes of action of the Complaint against Guiao without leave to amend. (Minute Order, Aug. 4, 2025.) The Court further sustained the demurrer as to all causes of action against GEICO, granting Plaintiff leave to amend her first two causes of action for breach of contract and intentional misrepresentation. (Ibid.) Subsequently, on February 10, 2026, the Court sustained GEICO's demurrer to the First Amended Complaint, again permitting Plaintiff to amend the causes of action for breach of contract and intentional misrepresentation. (Minute Order, Feb. 10, 2025.)

On March 2, 2026, Plaintiff filed the operative Second Amended Complaint (the "SAC"). Plaintiff alleges that, following a motor vehicle accident on February 24, 2023 (the "Incident") in which her vehicle struck a tree, Defendant wrongfully refused to cover her medical expenses and her passenger's emotional distress damages. (SAC, at pp. 2-3.)

On March 30, 2026, GEICO concurrently filed the instant Demurrer (the "Demurrer") and Motion to Strike portions of the SAC (the "Motion").

No opposition or reply papers have

been filed.

ANALYSIS

“The party against whom a complaint ... has been filed may object, by demurrer ... to the pleading on any one or more of the following grounds: ... (e) [t]he pleading does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc. § 430.10.)

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)² When considering demurrers, courts “give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Blank v. Kirwan (2006) 39 Cal.3d 311, 318 (Kirwan).)³ In a demurrer proceeding, the court treats all material facts properly pleaded as true, but does not assume “contentions, deductions or conclusions of fact or law. [Citation.]”⁴ (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) “Questions of fact may be resolved on demurrer only when there is only one legitimate inference to be drawn from the allegations of the complaint.”⁵ (TracFone Wireless, Inc. v. County of Los Angeles (2008) 163 Cal.App.4th 1359, 1368.)⁶

“It is not the ordinary function of a demurrer to test the truth of the plaintiff’s allegations or the accuracy with which he describes the defendant’s conduct. A demurrer tests only the legal sufficiency of the pleading.” (Berg v. Berg Enterprises, LLC v. Boyle (2009) 178 Cal.App.4th 1020, 1034.) The facts alleged in a complaint are deemed true “however improbable they may be. [Citation.]” (Id., at p.1034.)

Attachments to a complaint are also assumed to be true, and “they take precedence over any conflicting allegations” in the complaint. [Citation.]” (George v. eBay, Inc. (2021) 71 Cal.App.5th 620, 628.)

In considering a demurrer to an amended complaint, a court may properly consider allegations asserted in prior complaints. (People ex rel. Gallegos v. Pacific Lumber Co. (2008) 158 Cal.App.4th 950, 957.) Inconsistencies in prior pleadings must be explained, and if they are not, the Court may disregard the inconsistent allegations. (Arce v. Childrens

Hospital Los Angeles (2012) 211 Cal.App.4th 1455, 1468, fn. 7.)

Where a demurrer is sustained, it is generally an abuse of discretion to deny leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (Goodman v. Kennedy, (1976) 18 Cal.3d 335, 349.) The burden of proving a reasonable possibility of curing the defect is on the Plaintiff. (Kirwan, supra, 39 Cal.3d, at p. 318.)

A.

Meet and Confer Requirement

Before filing a demurrer, “the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc., § 430.41, subd. (a).) Failure to meet and confer is not grounds for overruling the Demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4).)

GEICO's

counsel, Tahereh Mahmoudian (“Mahmoudian”), attests that she sent a comprehensive meet and confer letter to Plaintiff on March 20, 2026 explaining why the allegations of the SAC were deficient. (Mahmoudian Decl., ¶ 3.) The letter proposed holding a meet and confer session on March 23 or March 24, 2026. (Id., ¶ 3, Exh. 1.) Mahmoudian and Plaintiff met and conferred via telephone on March 24, 2026, but could not reach agreement concerning the issues to be raised in the Demurrer. (Id., ¶ 4.)

The Court finds the foregoing meet and confer effort to be satisfactory.

B.

Grounds for Demurrer

As a preliminary matter, the Court notes that the SAC does not clearly indicate what causes of action Plaintiff continues to allege against GEICO. The Court's August 24, 2025 and February 10, 2026 orders permitted Plaintiff to amend two causes of action against GEICO:

(1) breach of contract, and (2) intentional misrepresentation. (Minute Order, Feb. 10, 2026.) The Court accordingly considers whether the SAC states facts sufficient to constitute either of these two causes of action.

(1)

Breach of Contract

To state a cause of action for breach of contract, a plaintiff must allege: (1) the existence of the contract; (2) the plaintiff's performance or excuse for nonperformance; (3) the defendant's breach; and (4) damages to the plaintiff as a result of the breach. (CDF Firefighters v. Maldonado (2008) 158 Cal.App.4th 1226, 1239.)

A written contract may be pleaded either by setting out its terms verbatim, attaching a copy of the contract to the complaint and incorporating it by reference, or by alleging its legal effect. (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 993.)

Defendants argue that Plaintiff fails to plead the required elements of a breach of contract claim by: (1) failing to adequately plead the terms of the contract; and (2) failing to allege conduct constituting breach. (Dem., at pp. 4-5.)

Plaintiff alleges that she was driving a 2022 Acura TLK (the "Subject Vehicle") when she collided with a tree. (SAC, at p. 2.) However, although Plaintiff alludes to the existence of an insurance policy and alleges that GEICO "did not compensate the Plaintiff and the terms and condition of GIECO insurer policy agreed [sic]," instead merely repairing the Subject Vehicle and compensating Plaintiff's passenger, Plaintiff does not indicate what the relevant policy coverages and exclusions were. (SAC, at p. 3.) No written agreement is attached to the SAC.

Plaintiff continues to allege that GEICO representative Harold Whitaker ("Whitaker") told her former attorney that GEICO would pay "all reasonable expenses actually incurred by an insured within one year from the date of a accident [sic] for necessary medical, surgical, x-ray, dental services, prosthetic devices, ambulance, hospital, professional nursing, and federal services [sic]." (SAC, at p. 2.) This language refers to a claims adjustment letter attached to the First Amended Complaint, which the

Court ordered stricken on February 10, 2026. (First Am. Compl., Exh. A; Minute Order, Feb, 10, 2026.) The letter relates to a claim submitted to GEICO on behalf of Jennifer Portocarrero, not Plaintiff, and does not indicate whether the Subject Vehicle was covered, thereby failing to include all essential terms of the agreement.

Plaintiff's First Amended Complaint

attached a total of three letters from GEICO claims adjustors implicating two separate insurance policies. (First Am. Compl., Exhs. A-C.) It is accordingly unclear whether Plaintiff claims breach of the policy cited above or the second policy held by Anthony Thompson ("Thompson"). (See First Am. Compl., Exhs. B, C.) Plaintiff does not delineate between the two policies in the SAC.

Moreover, if Plaintiff claims

breach of the policy held by Thompson, the exhibits attached to the First Amended Complaint indicate that Thompson's policy did not include medical payments or personal injury protection, contradicting Plaintiff's claim that GEICO's failure to pay constituted breach. (First Am. Compl., Exh. B, at p. 2.) The allegations of the SAC do not account for these inconsistencies. The Court accordingly finds that Plaintiff has failed to allege the existence of a policy entitling her to compensation for medical expenses.

(2)

Intentional Misrepresentation

Intentional misrepresentation is a form of fraud. (Civ. Code, § 1572.) To plead a fraud cause of action, a plaintiff must plead: (1) the defendant made a misrepresentation, (2) the defendant knew of the statement's falsity, (3) the defendant intended to induce the plaintiff's reliance, (4) the plaintiff justifiably relied on the statement, and (5) there was resulting damage. (Philipson & Simon v. Gulsvig (2007) 154 Cal.App.4th 347, 363.)

Fraud must be pled with specificity. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) "[G]eneral and conclusory allegations do not suffice." (Ibid.) A plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were made. (West v. JPMorgan Chase Bank, N.A. (2013) 214 Cal.App.4th 780, 793.) In the case of a corporate defendant, the plaintiff must allege the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the

representation was made. (Ibid.)

Plaintiff still does not clearly allege intentional misrepresentation. While Plaintiff generally alleges that Guiao's report indicating that she was principally at fault for the Incident was false, she does not attempt to allege inducement, reliance, or resulting harm. As GEICO notes in its Demurrer, Plaintiff appears to have abandoned this cause of action. The Court accordingly finds that Plaintiff has failed to sufficiently state a cause of action for intentional misrepresentation.

Based on the foregoing, the Court SUSTAINS the Demurrer to the SAC in its entirety.

(3)

Leave to Amend

Plaintiff has not filed an Opposition or otherwise established that she can plead additional facts sufficient to constitute either breach of contract or intentional misrepresentation. The Demurrer is accordingly SUSTAINED WITHOUT LEAVE TO AMEND.

C.

Motion to Strike

Upon motion by a party, a court may "strike any irrelevant, false, or improper matter inserted in any pleading ... [or] all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436, subds. (a), (b).) A motion to strike may be directed against a whole pleading or any part of it. (§ 435, subd. (b)(1).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (§ 437.)

GEICO moves to strike references to statements made by Whitaker relating to medical payments because they refer to an exhibit ordered stricken by the Court. (Mot., at pp. 1-2.) Because the Court has sustained GEICO's Demurrer in its entirety, the language referencing Whitaker does not survive the Demurrer. The Motion is accordingly DENIED AS MOOT.

CONCLUSION

Defendant GEICO General Insurance Company's Demurrer to
Plaintiff Claudia Portocarrero is SUSTAINED WITHOUT LEAVE TO AMEND.

Defendant
GEICO General Insurance Company's Motion to Strike is DENIED AS MOOT.

Moving party to give notice.